

The U.P. Secondary Education (Removal of Difficulties) Order, 1975

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State of Uttar Pradesh - Act

The U.P. Secondary Education (Removal of Difficulties) Order, 1975

UTTAR PRADESH

India

The U.P. Secondary Education (Removal of Difficulties) Order, 1975

RULE THE-U-P-SECONDARY-EDUCATION-REMOVAL-OF-DIFFICULTIES-ORDER-1975 of 1975

Published on 18 August 1975

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The U.P. Secondary Education (Removal of Difficulties) Order, 1975

Published Vide Notification No. Ma-4696/15-7 - 2(8)-75, dated 18.8.1975.

Whereas difficulty arises in giving effect to certain provisions of Section 14 of the Uttar Pradesh Secondary Education Laws (Amendment) Act, 1975 (U.P. Act No. 26 of 1975);

Now, therefore, in exercise of the powers conferred by Section 22 of the aforesaid Act, the Governor considers it necessary to issue the following Orders.

1.

(1)

This Order may be called the Uttar Pradesh Secondary Education (Removal of Difficulties) Order, 1975.

(2)

It shall come into force at once.

2.

(a)

Notwithstanding anything contained in Section 14 of the aforesaid Act, any substantive or leave vacancy or any vacancy existing or occurring during the current academic session of the Head of Institution or, a teacher of an institution may be filled in by the Committee of Management, on ad hoc basis in the manner provided thereunder till such period, not exceeding six months in any case, as a person duly selected in accordance with Section 14 aforesaid is appointed against such vacancy.

(b)

The vacancy of the Head of the Institution shall be filled -

(i)

in case of Intermediate College by the senior most teacher of the institution in the Lecturer's grade;

(ii)

in case of High School raised to the level of Intermediate College or a Junior High School raised to the level of High School, during the current academic session, by the Head Master of such High School or Junior High School, as the case may be ;

Provided the senior most teacher or the Headmaster, as the case may be possesses a good record of service and administrative ability.

(c)

The vacancy of a teacher in the Lecturer's grade or L.T. grade or C.T. grade shall be filled in by senior most teacher of the institution in the L.T. grade, C.T. grade and J.T.C/B.T.C. grade respectively.

(d)

Where any vacancy cannot be filled in the manner laid down in the preceding clauses, the same may be filled in an ad hoc basis for the same maximum period, as laid down in clause (a), by appointment of outsiders after selection by a Selection Committee consisting of three members, which may be constituted for the purpose on ad hoc basis by the Committee of Management.

(e)

Any person to be eligible for being appointed under clauses (b), (c) and (d) shall possess the minimum qualifications prescribed in Appendix 'A' referred to in Regulation 1 of Chapter II of the Calendar of the Board of High School and Intermediate Education.

(f)

Where on account of difference or dispute or for any other reason there is no Committee of Management in effective control of the affairs of an institution or has not been recognised as such by the Inspector and no authorised controller has been appointed by the State Government in respect of such Institution, the powers of the Committee of Management in the foregoing clauses shall in the case of appointment of the Head of Institution be exercised by the Inspector and in the case of appointment of a teacher be exercised by the Head of the Institution concerned.

(g)

All appointments made under the foregoing clauses shall, as soon as may be, reported to the Inspector giving particulars of qualification and experience in respect of each person and the Inspector shall have the power to disapprove any appointment made in contravention of the foregoing provisions upon which the appointment in question shall cease. The decision of the Inspector in this regard shall be final.

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